

BECM 3107

CONSTRUCTION CONTRACT

Term Final Exam Study Guide

Easy English + বাংলা ব্যাখ্যা + Memory Techniques

Definitions • Rules • Case Studies • Comparisons • MCQs • Model Answers

SOURCE BASIS

Prepared strictly from the uploaded lecture: “3.0 - Construction Contract” (BECM 3107, Construction Contract and Law). For exam answers, follow the lecture wording and sequence.

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1. Master Map of the Lecture

First understand the structure; then memorize the rules.

A. Full lecture map

Topic	What you must remember	Memory key
Contract meaning	Legally enforceable promise; contractor performs and owner pays	WORK ↔ PAY
Five components	Scope, quality, schedule, budget, rights/remedies	SQSBR
Bidding stage	Prebid conference and right to reject bids	ASK - EQUAL INFO
Document issues	Hierarchy, complementary reading, errors and ambiguities	ORDER + CLARIFY
Interpretation	Specific over general; handwritten over typed over printed	S-H-T-P
Specifications	Design/prescriptive versus performance	DETAIL vs RESULT
Forms	Standard forms and custom contracts	READY vs TAILORED
Early work	Early-start letter and letter of intent	LIMIT FIRST
Third parties	Usually no third-party beneficiary rights	NO AUTOMATIC RIGHTS

B. Best exam-study method

- Read the easy explanation once.
- Close the guide and recall the mnemonic aloud.
- Write the rule in 3-5 lines without looking.
- Add one example or case study.
- Finish with a one-line conclusion.

ANSWER FORMULA: D-R-E-C

Definition → Rule → Example/Case → Conclusion. বাংলা: সংজ্ঞা → নিয়ম → উদাহরণ/মামলা → উপসংহার।

2. Meaning of a Construction Contract

The basic promise that the law will enforce

CORE DEFINITION

In legal terms, a contract is a promise that the law will enforce. A construction contract contains at least two reciprocal promises.

Two reciprocal promises - পারস্পরিক প্রতিশ্রুতি

CONTRACTOR	OWNER
• Promises to perform the work specified in the contract. • বাংলা: চুক্তিতে নির্ধারিত কাজ সম্পাদনের প্রতিশ্রুতি দেয়।	• Promises to pay the contractor for that work. • বাংলা: সম্পন্ন কাজের জন্য ঠিকাদারকে অর্থ দেওয়ার প্রতিশ্রুতি দেয়।

Memory technique

WORK ↔ PAY

Contractor = WORK (কাজ করবে) | Owner = PAY (অর্থ দেবে). These two promises make the relationship reciprocal.

Necessary words - প্রয়োজনীয় শব্দ

English	সহজ বাংলা অর্থ
Legally enforceable	আইন দ্বারা কার্যকর বা বাধ্যতামূলক
Promise	প্রতিশ্রুতি
Reciprocal	পারস্পরিক / একে অপরের প্রতি
Perform the work	কাজ সম্পাদন করা
Owner	মালিক / নিয়োগকর্তা
Contractor	ঠিকাদার

ONE-LINE EXAM ANSWER

A construction contract is an enforceable exchange of promises: the contractor promises to perform the specified work, and the owner promises to pay.

3. Five Key Components of the Legal Relationship

What the owner-contractor contract must establish

No.	Component	Easy meaning / বাংলা
1	Scope of work	Exactly what work is included - কাজের পরিধি
2	Quality of work	Required standard and workmanship - কাজের গুণমান
3	Project schedule	When work starts, progresses, and finishes - সময়সূচি
4	Project budget	Price/cost framework - প্রকল্পের বাজেট
5	Rights and remedies	What each party may do after breach - অধিকার ও প্রতিকার

Mnemonic: S-Q-S-B-R

SQSBR

Scope → Quality → Schedule → Budget → Rights/Remedies. বাংলা মনে রাখুন: “কাজ-মান-সময়-টাকা-প্রতিকার।”

Why these five matter

- They define what must be built and the required standard.
- They allocate time and cost expectations.
- They provide a response when one party breaches its obligations.

Mini example

EXAMPLE

A school contract may define 20 classrooms (scope), specified finishes (quality), 12 months (schedule), an agreed price (budget), and damages/termination rights if either party breaches (rights and remedies).

4. Prebid Conferences and Rejection of Bids

Rules before the contract is awarded

A. Prebid conference - দরপত্র-পূর্ব সভা

- The owner meets prospective bidders before bids are submitted.
- The owner answers questions and provides the same information to all bidders.
- Attendance may be mandatory. Failure to attend can prevent a bidder from submitting a bid.

MEMORY: Q-E-M

Questions answered → Equal information → Mandatory attendance may matter.

B. Right to reject bids

Project type	Lecture rule	বাংলা
Private project	Owner may reject any or all bids without giving a reason.	মালিক কারণ না দিয়েও এক বা সব দরপত্র বাতিল করতে পারে।
Public project	Procurement regulations may limit rejection; usually a compelling reason is needed.	ক্রয়বিধি সীমা আরোপ করতে পারে; সাধারণত শক্তিশালী কারণ প্রয়োজন।

EXAM DISTINCTION

Private = broad owner freedom. Public = procurement rules and stronger justification.

5. Contractor's Bid as a Contract Document

Protection for the contractor, risk for the owner

What the bid may contain

- Project price
- Project schedule
- Conditions and assumptions about the work

Why a contractor may want the bid included

- To protect its assumptions and agreed terms.
- To preserve qualifications that affected the bid price or schedule.

Main conflict risk

WARNING

The bid can conflict with drawings or specifications. A qualification in the bid may contradict the design requirements.

Approved shop drawings and submittals

CONTRACTOR'S VIEW

- Including approved shop drawings/submittals may protect the contractor.
- It may preserve selections and assumptions.

OWNER'S VIEW

- Owners usually refuse inclusion.
- Inclusion may make the owner legally responsible for errors in those documents.

MEMORY: P-S-C

Bid contains Price, Schedule, Conditions - but inclusion may create Conflicts.

6. Conflicts Between Contract Documents

Hierarchy and complementary interpretation

A. Typical hierarchy of documents

Priority	Document
Highest	Change orders and modifications
2	Supplementary conditions
3	General conditions
4	Drawings
5	Specifications

DRAWING RULE

A larger-scale drawing may govern over a smaller-scale drawing.

B. Inconsistency within the same document

- The contractor may be required to follow the more stringent requirement.
- The contractor may have to provide better quality or a greater quantity, based on the owner's interpretation.

C. Complementary documents

AIA A201 IDEA

Some contracts require all documents to be read together as a whole. A requirement stated in one document is binding as if included in all.

MEMORY ORDER

Change → Supplementary → General → Drawings → Specifications (C-S-G-D-S).

7. Patent Ambiguity Rule

Obvious discrepancy = ask before bidding

DEFINITION

Patent ambiguity means an obvious discrepancy or conflict in the bidding documents.

The rule

- The bidder must request clarification of an obvious discrepancy before submitting the bid.
- Even when the bidding instructions do not expressly say so, courts may hold that the bidder has a duty to notify the owner.
- If the contractor makes its own erroneous assumption, it may be responsible for the resulting extra cost.

Three-step memory process

Step	Action	বাংলা
1	SEE the obvious conflict	স্পষ্ট বিরোধ দেখুন
2	ASK for clarification	ব্যাখ্যা চান
3	THEN bid	তারপর দরপত্র দিন

MEMORY: SEE - ASK - BID

Never guess about an obvious inconsistency. Clarify first.

Possible hierarchy exception

When the bidding documents state a hierarchy, some courts have allowed bidders to rely on that hierarchy to resolve patent ambiguities.

8. Case Study: Fortec Constructors v. United States

Patent ambiguity and the cost of failing to ask

IRAC part	Case point
Issue	Two conflicting rebar-lap details appeared in plans for a medical clinic.
Action	The contractor did not ask for clarification and selected one detail using its own judgment.
Problem	The selected detail did not meet local standards; the owner required demolition and reconstruction.
Decision	The contractor's extra-payment claim was denied because the ambiguity was obvious and clarification should have been requested.
Lesson	The contractor bore the loss caused by its failure to inquire.

CASE MEMORY: CONFLICT → GUESS → REDO → NO EXTRA PAY

বাংলা: বিরোধ ছিল → ঠিকাদার অনুমান করল → কাজ ভেঙে পুনরায় করতে হলো → অতিরিক্ত অর্থ পেল না।

Exam-ready conclusion

Fortec illustrates that a contractor cannot safely rely on its own interpretation of a patent ambiguity. It must seek clarification before bidding or risk bearing the extra cost.

9. Latent Discrepancies and Code Violations

Hidden conflicts discovered after work begins

LATENT AMBIGUITY

An error or discrepancy that does not become apparent until construction has started.

Patent vs latent

Point	Patent ambiguity	Latent ambiguity
Visibility	Obvious before bidding	Hidden; appears after construction starts
Immediate duty	Ask for clarification before bid	Notify when discovered
Main risk	Guessing may make contractor bear extra cost	Proceeding despite known problem may create liability

Possible code or statutory violation

- Most contracts may not require the contractor to guarantee that all documents comply with laws and codes.
- But if the contractor discovers or learns of a possible violation, it must notify the A/E before starting the affected work.
- If the contractor knowingly performs non-compliant work, it may be liable for correction costs.

MEMORY: DISCOVER → NOTIFY → STOP/WAIT

জানলে চুপ থাকা যাবে না। A/E-কে জানিয়ে নির্দেশ নিতে হবে।

10. Rules of Interpretation: Specific and Written Terms

Which wording controls when clauses conflict?

A. Specific over general

RULE

A specific clause prevails over a general clause because it addresses the particular subject more directly.

B. Handwritten over typewritten over preprinted

Priority	Form of language	Reasoning cue
1	Handwritten	Most individually added / most specific
2	Typewritten	Added for the transaction
3	Preprinted	General standard wording

Concrete example from the lecture

Clause form	Statement	Result
Printed	All concrete shall be M20 grade.	General baseline
Typed	Foundations shall use M25.	More specific than printed
Handwritten	Use M30 for foundation due to soil condition.	Controls over typed and printed

MEMORY: S-H-T-P

Specific first; Handwritten > Typewritten > Preprinted.

11. Contra Proferentem - Interpretation Against the Drafter

A last-resort rule for unresolved ambiguity

DEFINITION

If ambiguity cannot be resolved by standard interpretation rules, the contract is interpreted against the party that drafted it. This is contra proferentem.

How it applies in construction

- Most construction contracts are drafted by the A/E acting as the owner's agent.
- Therefore, a reasonable ambiguity may be resolved in favor of the contractor.
- The rule is especially likely when the drafter claims the agreement relieves it from liability for its acts.

Important limitation

PATENT AMBIGUITY OVERRIDES GUESSING

Contra proferentem does not rescue a contractor who ignores an obvious ambiguity. The contractor still has a duty to inquire before bidding.

Bangla meanings

Term	বাংলা অর্থ
Ambiguity	অস্পষ্টতা / দ্ব্যর্থতা
Drafter	চুক্তির খসড়া প্রস্তুতকারী
Against the drafter	খসড়াকারীর বিপক্ষে ব্যাখ্যা
Reasonable interpretation	যুক্তিসঙ্গত ব্যাখ্যা
Relieves liability	দায় থেকে অব্যাহতি দেয়

12. Case Study: Interstate General Government Contractors, Inc. v. Stone

Contra proferentem versus patent ambiguity

Stage	What happened
Conflict	Specifications referred to conventional motor starters in some places and more expensive variable-speed controllers in others.
Contractor's choice	The contractor assumed the cheaper motor starters without asking for clarification.
Claim	When the government required the costlier controllers, the contractor requested extra payment.
Argument	The contractor relied on contra proferentem because the government drafted the contract.
Decision	The patent ambiguity rule applied. The claim was denied because the obvious ambiguity should have been clarified before bidding.

CASE MEMORY: CHEAPER GUESS = CONTRACTOR'S COST

The rule against the drafter is secondary to the duty to clarify an obvious conflict.

One-sentence exam lesson

A contractor cannot use contra proferentem after failing to inquire about a patent ambiguity.

13. Design and Performance Specifications

Detailed method versus required result

Feature	Design / Prescriptive specification	Performance specification
Focus	Detailed materials, equipment, tolerances and finishes	Result or performance to be achieved
Contractor discretion	Little or no discretion	Contractor determines how to achieve the result
Risk of deviation	Deviation may be breach of contract	Method may vary if the required result is achieved
Memory word	DETAIL	RESULT

Easy explanation

DESIGN / PRESCRIPTIVE	PERFORMANCE
• "Use this exact method/material." • বাংলা: কীভাবে করতে হবে তা বিস্তারিত বলা।	• "Achieve this final result." • বাংলা: ফলাফল বলা; পদ্ধতি ঠিকাদার নির্ধারণ করে।

COURT'S MAIN QUESTION

How much discretion was given to the contractor? Less discretion suggests a design specification; more discretion suggests a performance specification.

MEMORY: D = DETAIL, P = PERFORMANCE RESULT

Design tells HOW. Performance tells WHAT result.

14. Submittals and Reasonably Deducible Work

What is implied by the documents, and what is not?

General clause

Construction contracts often state that the contract documents intend to include all items necessary for proper execution and completion of the work.

When omitted work may NOT be reasonably deducible

- The unshown work involves considerable extra cost.
- The unshown work involves design work that requires a submittal.

LECTURE RULE

Work with major extra cost or separate design/submittal requirements is generally not considered reasonably deducible from the work shown.

Necessary vocabulary

Word	Bangla meaning
Submittal	অনুমোদনের জন্য দাখিলকৃত নথি/তথ্য
Proper execution	সঠিকভাবে কাজ সম্পাদন
Completion	সমাপ্তি
Considerable extra cost	উল্লেখযোগ্য অতিরিক্ত ব্যয়
Reasonably deducible	যুক্তিসঙ্গতভাবে অনুমানযোগ্য

MEMORY: BIG COST OR DESIGN SUBMITTAL = NOT AUTOMATICALLY IMPLIED

বড় অতিরিক্ত ব্যয় বা আলাদা ডিজাইন-সাবমিটাল প্রয়োজন হলে, সেটি শুধু আঁকা কাজ থেকে সহজে ধরে নেওয়া যাবে না।

15. Industry Standard Contract Forms

Coordinated families of ready-made documents

Two choices when making a contract

- Write a custom (manuscript) contract.
- Use standard forms prepared by industry organizations.

Organizations named in the lecture

Organization	Abbreviation / note
American Institute of Architects	AIA
ConsensusDOCS	ConsensusDOCS
Engineers Joint Contract Documents Committee	EJCDC

A “family” of coordinated forms

- Owner-contractor agreement
- Designer agreement
- Subcontracts

WHY A FAMILY?

Coordinated documents keep risks and responsibilities consistent and reduce contradictions among agreements.

Advantages and disadvantages

ADVANTAGES	DISADVANTAGES
• Faster negotiation; saves time and money. • Clear roles and responsibilities. • Tested in courts; easier interpretation. • Generally legally valid.	• May not fit local law. • May be outdated. • May not suit special/complex projects. • May favor the drafting organization.

16. Custom Construction Contracts

Tailored terms for a particular project

DEFINITION

A custom contract is prepared for a specific project or used repeatedly by a developer/contractor, often by adapting a standard form with necessary modifications.

ADVANTAGES

- Tailored to specific project needs.
- Clearly defines roles, risks and responsibilities.
- Can eliminate possible bias in standard forms.

DISADVANTAGES

- Other party may be unfamiliar with the terms.
- Takes more time to negotiate.
- Higher legal costs.
- Contractors may increase bids due to perceived risk.

Standard vs custom - quick comparison

Point	Standard form	Custom contract
Preparation	Ready-made	Project-specific
Negotiation	Usually faster	Usually slower
Fit	May not fit unusual projects	Can be tailored
Cost	Lower drafting cost	Higher legal/drafting cost
Familiarity	Industry may know it	Other party may be unfamiliar

MEMORY: STANDARD = READY; CUSTOM = TAILORED

Ready forms save time. Tailored forms improve fit but cost more time and money.

17. Commencement of Work Before the Final Contract

Early-start arrangements and letters of intent

Why work may begin early

- Contract negotiations may take a long time on large or complex projects.
- Delay can raise costs and harm the schedule.
- Long-lead custom materials may need early ordering.
- Owners may want to lock prices or secure subcontractor availability.
- Loan agreements may require work to begin by a certain date.

Early-start letter

LIMITED AUTHORITY

The owner may authorize limited work with a defined scope, cost and timeline. If the final contract is not agreed, the arrangement may be terminated; if agreed, the final contract replaces it.

Letter of Intent (LOI)

A Letter of Intent shows that the owner and contractor intend to work together before the final contract is fully signed.

SOURCE NOTE

The lecture slide lists the same stated advantages and disadvantages for the LOI as for custom construction contracts. For the exam, reproduce the lecture's stated points if asked.

MEMORY: EARLY WORK MUST BE LIMITED

Define Scope + Cost + Time before starting. বাংলা: কাজের পরিধি, ব্যয় ও সময় আগে নির্ধারণ করুন।

18. Third-Party Beneficiaries

Other project participants and their contractual rights

Role of references to other parties

- Contract documents may recognize other parties involved in the project.
- The construction contract should remain consistent with their rights and obligations under separate agreements with the owner or contractor.

Main rule from the lecture

NO AUTOMATIC THIRD-PARTY CLAIM

Most construction contracts specifically prohibit a third party from claiming rights under the contract as a third-party beneficiary.

Easy example

A subcontractor or supplier may be important to the project, but that does not automatically give it the right to enforce the owner-contractor contract when the contract excludes third-party beneficiary rights.

Vocabulary

Term	বাংলা অর্থ
Third party	চুক্তির প্রধান দুই পক্ষের বাইরে অন্য ব্যক্তি/প্রতিষ্ঠান
Beneficiary	সুবিধাভোগী
Separate agreement	আলাদা চুক্তি
Rights and obligations	অধিকার ও বাধ্যবাধকতা
Prohibit	নিষিদ্ধ করা

MEMORY

Recognized role $\neq$ right to sue under the main contract.

19. High-Yield Vocabulary Bank

English legal terms with necessary Bangla meanings

English	বাংলা	English	বাংলা
Breach	চুক্তিভঙ্গ	Remedy	আইনি প্রতিকার
Obligation	বাধ্যবাধকতা	Prebid conference	দরপত্র-পূর্ব সভা
Prospective bidder	সম্ভাব্য দরদাতা	Procurement regulation	সরকারি/প্রাতিষ্ঠানিক ক্রয়বিধি
Compelling reason	জোরালো বা গ্রহণযোগ্য কারণ	Qualification in a bid	দরপত্রে শর্ত/সীমাবদ্ধতা
Hierarchy of documents	নথির অগ্রাধিকারক্রম	Inconsistency	অসামঞ্জস্য
Stringent requirement	অধিক কঠোর শর্ত	Complementary	পরস্পর-সম্পূরক
Discrepancy	অমিল/বিরোধ	Patent ambiguity	স্পষ্ট অস্পষ্টতা/বিরোধ
Latent ambiguity	গোপন বা পরে প্রকাশিত অস্পষ্টতা	Clarification	ব্যাখ্যা বা স্পষ্টীকরণ
Statutory violation	আইনগত বিধি লঙ্ঘন	Contra proferentem	খসড়াকারীর বিরুদ্ধে ব্যাখ্যার নীতি
Prescriptive specification	বিস্তারিত নির্দেশনামূলক স্পেসিফিকেশন	Performance specification	ফলাফলভিত্তিক স্পেসিফিকেশন
Discretion	সিদ্ধান্ত নেওয়ার স্বাধীনতা	Submittal	অনুমোদনের জন্য দাখিল
Standard form	মানক চুক্তি ফরম	Manuscript contract	কাস্টম/বিশেষভাবে খসড়া করা চুক্তি
Lead time	উৎপাদন/সরবরাহে প্রয়োজনীয় আগাম সময়	Letter of Intent	অভিপ্রায়পত্র
Third-party beneficiary	তৃতীয়-পক্ষ সুবিধাভোগী		

VOCABULARY METHOD

Cover the Bangla column and say the meaning. Then cover the English column and recall the legal term.

20. Memorization Codes and Answer Templates

Fast recall during the exam

Code	Meaning	Bangla cue
WORK ↔ PAY	Contractor performs; owner pays	কাজ ↔ অর্থ
SQSBR	Scope, Quality, Schedule, Budget, Rights/remedies	কাজ-মান-সময়-টাকা-প্রতিকার
QEM	Questions, Equal information, Mandatory attendance	প্রশ্ন-সমান তথ্য-বাধ্যতামূলক
CSGDS	Change, Supplementary, General, Drawings, Specifications	নথির অগ্রাধিকার
SEE-ASK-BID	Patent ambiguity response	দেখুন-জানুন-তারপর বিড
SHTP	Specific; Handwritten > Typed > Printed	বিশেষ; হাতে-টাইপ-প্রিন্ট
D = DETAIL	Design specification	বিস্তারিত পদ্ধতি
P = RESULT	Performance specification	ফলাফল
LIMIT FIRST	Early-start agreement	Scope-Cost-Time আগে

Model answer template: “Explain the patent ambiguity rule.”

MODEL

Definition: A patent ambiguity is an obvious conflict in bidding documents. Rule: The bidder must request clarification before bidding. Consequence: If it guesses incorrectly, it may bear the extra cost. Case: Fortec Constructors. Conclusion: Obvious conflicts must be clarified, not assumed.

Model comparison template

COMPARE IN 4 HEADS

Definition → Focus → Contractor discretion → Consequence. Use this for Design vs Performance and Standard vs Custom.

21. Probable Written Questions

Practice in the wording used in the lecture

1. Define a construction contract and explain its reciprocal promises.
2. Explain the five key components of the owner-contractor legal relationship.
3. What is a prebid conference? Explain the effect of mandatory attendance.
4. Distinguish the owner's right to reject bids in private and public projects.
5. Explain the advantages and risks of including the contractor's bid as a contract document.
6. Explain the hierarchy of contract documents and the idea that documents are complementary.
7. What is the patent ambiguity rule? State its consequences.
8. Discuss Fortec Constructors v. United States.
9. Distinguish patent and latent ambiguities.
10. Explain "specific over general" and "handwritten over typewritten over preprinted."
11. What is contra proferentem? Explain its limitation using the Interstate case.
12. Distinguish design specifications and performance specifications.
13. When is omitted work not reasonably deducible from plans and specifications?
14. Discuss the advantages and disadvantages of standard forms and custom contracts.
15. Explain commencement of work before the final contract and the use of an early-start letter.
16. What is a Letter of Intent?
17. Explain the position of third-party beneficiaries in construction contracts.

WRITING TIP

For a 5-mark answer: definition + 3 rules + example. For a 10-mark answer: definition + structured headings + comparison/case + conclusion.

22. MCQ Practice

Test recall without looking at the answers

- 1. A construction contract contains reciprocal promises between:**
A. Owner and court B. Owner and contractor C. Architect and supplier D. Government and bank
- 2. Which is NOT one of the five key components?**
A. Scope B. Quality C. Weather forecast D. Budget
- 3. A mandatory prebid conference may:**
A. Cancel the project automatically B. Prevent a non-attendee from bidding C. Replace the contract D. Guarantee award
- 4. On a private project, the owner may generally:**
A. Never reject bids B. Reject any or all bids without reason C. Reject only the highest bid D. Reject only with court approval
- 5. The highest typical priority is given to:**
A. Specifications B. Drawings C. Change orders/modifications D. General conditions
- 6. An obvious discrepancy is called:**
A. Latent ambiguity B. Patent ambiguity C. Performance specification D. Submittal
- 7. Under the patent ambiguity rule, the bidder should:**
A. Guess B. Ignore C. Ask for clarification D. Use the cheapest interpretation
- 8. Handwritten language generally controls over:**
A. Nothing B. Only drawings C. Typewritten and preprinted language D. Statutes
- 9. Contra proferentem means interpretation:**
A. Against the drafter B. Against the contractor C. Against the owner always D. Against the court
- 10. A performance specification mainly states:**
A. Exact method B. Required result C. Bid rejection rule D. Contract hierarchy
- 11. A standard form may be unsuitable because it:**
A. Is always illegal B. May not fit local law or complex projects C. Cannot define roles D. Has no written terms
- 12. Most construction contracts:**
A. Automatically grant third-party rights B. Prohibit third-party beneficiary claims C. Have no owner D. Ban submittals

ANSWER KEY

1-B, 2-C, 3-B, 4-B, 5-C, 6-B, 7-C, 8-C, 9-A, 10-B, 11-B, 12-B

23. One-Page Final Revision Sheet

Read this immediately before entering the exam hall

Topic	One-line recall
Contract	Law-enforced promise: contractor works; owner pays.
Five components	Scope, quality, schedule, budget, rights/remedies.
Prebid	Questions + equal information; attendance may be mandatory.
Bid rejection	Private: broad right. Public: procurement limits/compelling reason.
Bid as document	Protects contractor assumptions but may conflict with drawings/specs.
Hierarchy	Change/modification > supplementary > general > drawings > specifications.
Complementary	A requirement in one document may bind as if in all.
Patent ambiguity	Obvious conflict: ask before bid; wrong guess may cost contractor.
Latent ambiguity	Hidden until work begins; notify A/E when discovered.
Interpretation	Specific > general; handwritten > typed > printed.
Contra proferentem	Unresolved ambiguity against drafter, but not after ignoring patent ambiguity.
Specifications	Design = detailed method; performance = result.
Submittals	Major extra cost/design-submittal work is not normally reasonably deducible.
Standard forms	Fast and familiar, but may be outdated/biased/not locally suitable.
Custom contract	Tailored but slower and more costly.
Early work	Use limited scope, cost and time; final contract replaces early agreement.
Third party	Most contracts prohibit third-party beneficiary claims.

FINAL 30-SECOND CHANT

WORK-PAY | SQSBR | CSGDS | SEE-ASK-BID | SHTP | DETAIL vs RESULT | LIMIT FIRST

Last instruction

Do not write only definitions. Add the rule, consequence, and one example or case. Use headings and short paragraphs.